



कर्मचारी भविष्य निधि संगठन
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)
EMPLOYEES' PROVIDENT FUND ORGANISATION
(Ministry of Labour & Employment, Govt. of India)

मुख्य कार्यालय / Head Office
भविष्य निधि भवन, 14-भोकाजी कामा प्लेस, नई दिल्ली-110 066
Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.

No.: Coord/5(16)2009/Misc/

Dated: 28-10-2009

To

All Addl. CPFCs, Zones
All Regional P.F. Commissioners,
All Officers in charge, Sub Regional Offices

Sub:- Arrangements for smooth exercise of powers under sections 7A, 7B, 7C/14B of the EPF & MP Act, 1952 – Administrative scrutiny of the orders– Instructions – Reg.

Ref:- This officer letter No. RRC-II/28(31)07/53677 to 53777 dt. 17th October, 2007.

Sir,

Attention is invited to the above mentioned circular wherein revised instruction in supersession of earlier directions was issued for handling the cases initiated under section 7A, 7B, 7C and 14B of the Act for strict compliance then onwards. The matter is being revisited on the basis of feedback received and following clarification is issued:-

1. It has come to the notice of Head Office that the instructions issued are being interpreted differently by officers in a manner which does not appear to conform to the Head Office instructions. Taking a serious view of the matter, it is once again advised to all the field offices that directions contained in the Head Office circular have to be followed meticulously without any deviation.
2. However, should any circumstance or situation arises where the guidelines contained in this circular are difficult to implement due to any practical or administrative reasons, RPFC -I in charge of the Region shall forward a self contained proposal with proper justification to Head Office for consideration. Till issue of further instruction from the Head Office, the guidelines of the above circular shall prevail.
3. **Revised original jurisdiction under section 7A; Establishments of SRO with more than 1000 members:** In view of the practical difficulties and logistic problems expressed by the field offices, now the following arrangement for handling 7A cases is being issued in partial modification to the earlier direction dated 17th October, 2007:-

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For SROs

APFC	Estt. with members upto 250
RPFC-II / OIC	Estt. with more than 250 members

For ROs

APFC	Estt. with members upto 250
RPFC-II (C&R)	Estt. with 251 to 1000 members
RPFC-I	Estt. with more than 1000 members

4. In view of the above arrangement, all RPFC-I, In-charge of the Regions are requested to transfer all such 7A cases relating to SRO jurisdiction to the respective SRO and forward a list of these 7A cases to Head Office by 15th November 2009.

It is further clarified that except for the above, all other arrangement for conducting 7A cases as contained in head office circular no. RRC-II/28(31)07/53677 to 53777 dt. 17th October, 2007 shall continue as it is and all RPFC-I are requested to continue to review the cases for timely disposal, proper assessment and subsequent recovery action as well as quality of the speaking orders.

5. **Handling of 7A cases remanded back by Courts:**

Very often, 7A cases are being remanded back by various courts / tribunal for rehearing. It has also been observed, that disposal of such cases is done in a routine manner. Therefore in order to have proper adjudication of such matters it is decided that henceforth, the hearing of remanded back cases is to be conducted by an officer, administratively one level higher than the original assessing officer as explained below except for the cases of RPFC I:-

Original Assessing Officer	Assessing Officer on Remand Back
APFC	RPFC-II
RPFC-II	RPFC-I

The details of all such remand back cases to be forwarded to Head Office in the following Performa on quarterly basis to RPFC (Compliance), Head Office, the first one by 15th November, 2009 and subsequently as per schedule of other quarterly returns:

S. N o.	Name of Estt. With Code No.	Notice Period	date of 7A order	Amt. assessed	Name & Designation of 7A Authority	Reason for remand back	Remanded back by Court/ Tribunal	Name & Designation of assessing authority subsequent on remand back	Date of final disposal	Amount assessed

6. **Forwarding list of all 7A cases to Head Office:** It has been decided that all the RPFC-I will forward the list of all 7A cases of their region including their SROs, office wise to Head Office in the following format as a onetime measure by 15th November, 2009.


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S.No.	Name of Estt. With code no.	7A notice Period	Date of initiation of 7A	No. of hearings conducted	Assessing Authority(name & designation)	Remarks with reasons for pendency

The revised instructions are issued taking into cognizance the increased number of defaulting establishments, the number of 7A/14B cases initiated, timely initiation of statutory action for managing the default position and utilizing the existing manpower. The implementation of these guidelines expects to improve the compliance scenario by prompt and expeditious action. The deviations at local level by field offices not only dilutes the authority of Head Office but also leads to non uniformity of procedure and non achievement of organizational goal in terms of compliance and recovery and service to subscriber area. Timely action under the statute is of utmost importance. Delay in initiation or finalization of statutory actions adversely affects compliance management making the dues unrealizable in the long run besides inviting criticism from different forums as well as affecting the service delivery to members who are the main focus of the organization. Therefore, instructions issued from Head Office require strict compliance in letter and spirit by all concerned.

All Addl. Central P.F. Commissioner, Zones are requested to review the position and confirm that the revised arrangements are put in place and ensure to forward the information as requested in the preceding paras.

Please acknowledge receipt.

(This issues with the approval of CPFC)

Yours faithfully

(P. Sudhakar Babu)

Addl. Central P.F. Commissioner (Compliance)

Copy to:

1. PS to CPFC
2. FA & CAO and CVO
3. All Addl. CPFCs, Head Office, Director, NATRSS
4. Chief Engineer, Head Office
5. All Officers, Head Office
6. RPFC (Compliance), Head Office – for further processing of information received from the field offices as prescribed in the circular.
7. All Zonal Vigilance Directorates, Zonal Audit Directorates, ZTIs
8. RPFC (NDC) for hosting the circular on the website.
9. Hindi Cell for Hindi Version.

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